

444-73-3

1. The Commissioner of Natural Resources, acting pursuant to G.L. c.131 §40A, for the purposes of preserving and promoting the public safety and protecting public and private property, wild-life, fisheries, water resources, flood plain areas and agriculture, hereby adopts this order regulating and restricting inland wetlands in the Town of Westwood, County of Norfolk, Commonwealth of Massachusetts, as delineated on plans entitled "Commonwealth of Massachusetts, Department of Natural Resources, G.L. c.131 §40A Restrictions, Wetland Areas 1 through 48, adopted on February 1, 1974 , which plans are recorded herewith and incorporated herein.
2. This order does not grant any property rights; it does not authorize any person to trespass or injure the property of another; it does not excuse any person from complying with other applicable laws, regulations, by-laws or ordinances.
3. The following uses are permitted on land affected by this order provided the proposed use has received approval as required by G.L. c.131 §40 as most recently amended at the time the proposed work is to be undertaken:
 - A. The construction and maintenance of a driveway of minimum legal and practical width where alternative means of access from a public way to unrestricted land of the same owner is unavailable;
 - B. The enlargement to minimum legal and practical width and the maintenance of raised roadways which exist on the effective date of this order;
 - C. The installation and maintenance of underground utilities provided the surface of the wetland is restored substantially to its original condition;
 - D. The routine operation and maintenance of services on property owned or controlled by public or quasi-public bodies and used for water supply, park or recreation purposes or on land owned or controlled by public agencies or public utilities and used for the transmission of electric power, gas, or oil or the normal maintenance of sewerage or water lines;

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- E. The excavation of boat channels or boat mooring slips of a size sufficient for single family use provided that no fill or other material shall be placed upon the wetland except as may be necessary to construct the retention structure and provide access thereto, and to provide bank stabilization;
 - F. The construction of wildlife impoundments and other such excavations, provided that no fill or other material shall be placed upon the wetland except as may be necessary to construct the retention structure and provide access thereto, and to provide bank stabilization;
 - G. The construction of other single lane driveways and paths, including excavation and filling incidental thereto;
 - H. The construction and maintenance of beaches;
 - I. The construction and maintenance of boat launching ramps;
 - J. The construction which may be required by public or quasi-public agencies or private utilities for the installation or extension of services;
 - K. Commercial and non-commercial outdoor recreation activities, including, but not limited to, hiking, boating, trapping, hunting, fishing, golf, horseback riding, skeet and trap shooting and shooting preserves;
 - L. The construction and maintenance of catwalks, wharves, boathouses, boat shelters, fences, duckblinds, wildlife management shelters, foot bridges, observation decks and shelters;
 - M. Other works which are designed to enhance the appearance and attractiveness of open space or recreational areas without altering their use as such.
4. Except where authorized in paragraph 3 above:
- A. No person shall fill, place or dump on said inland wetland any soil, loam, peat, sand, gravel, rock or other mineral substance, refuse, trash, rubbish or debris;
 - B. No person shall drain or excavate or dredge said inland wetlands or remove therefrom loam, peat, sand, gravel, soil, or other mineral substance;
 - C. No person shall perform any act or use said inland wetland in a manner which would destroy the natural contours of the inland wetland, substantially alter existing patterns of water flow, or otherwise alter or permit the alteration of the natural and beneficial character of the inland wetland.
5. As used herein, the word "person" shall include corporations, societies, associations, partnerships, governments and subdivisions and authorities thereof, except where exempted by statute.
6. Any person aggrieved by this order who has a recorded interest in any portion of the land so affected, within ninety days of receipt of notice thereof, may petition the Superior Court to

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determine whether this order so restricts the use of this property as to constitute a taking without compensation. A list of the assessed owners of the land so affected is attached hereto and incorporated herein.

WITNESS my hand and seal this 1st day of February, 1974

Arthur W. Brownell
Commissioner

Pursuant to the provisions of G.L. c.131 §40A, the Board of Selectmen of the Town of Westwood hereby approves the foregoing order.

WESTWOOD BOARD OF SELECTMEN

Quart. J. Johnson
Robert M. Coughlin
Thomas M. Downey

October 9 1973
DATE

APPROVED: BOARD OF NATURAL RESOURCES

Frederick J. Cramp
Arnold E. Rutherford

COMMONWEALTH OF MASSACHUSETTS

SUFFOLK, SS

February 1, 1974

Then personally appeared the said Arthur W. Brownell, Commissioner of Natural Resources and acknowledged the foregoing instrument to be his free act and deed, before me.

My commission expires

July 28, 1978 John H. Danisbo
Notary Public

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TOWN OF WESTWOOD

Wetland #1

Robert Sever Hale Camping Reservation Inc.

Wetland #2

Robert Sever Hale Camping Reservation Inc.

Wetland #3

Robert Sever Hale Camping Reservation Inc.

Wetland #4

Robert Sever Hale Camping Reservation Inc.

Wetland #5

Donald L. Johnson
Louis M. Johnson
Vytautas Izbickas
Felicija T. Izbickas
James M. Sullivan
Helen E. Sullivan
Benjamin H. Amdur
Mary O. Amdur
Harry Bailey
Kathleen Mary Bailey
Louis Hubert Guy Denizard
Nicholas Stivaletta, Jr.
Joseph C. Higgins, Jr.

Wetland #6

Robert Sever Hale Camping Reservation Inc.

Wetland #7

Robert Sever Hale Camping Reservation Inc.
Dennis J. Melanson LCC #70405 ✓
Jeanette J. Melanson
Vincent J. Sulprizio LCC #79950 ✓
Josephine E. Sulprizio
Oscar J. Bertazzoni
Ann J. Bertazzoni
William Werber
Sylvia Werber

Wetland #8

Robert Sever Hale Camping Reservation Inc.

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Wetland #9

Robert Sever Hale Camping Reservation Inc.
George A. Deviney
Florence M. Deviney

Wetland #10

Marjorie L. Snow
Pauline L. Young
Jacqueline Kroll
Nicholas Stivaletta, Jr.

Wetland #11

Judith B. True
Robert Sever Hale Camping Reservation, Inc.
Clement W. Wight
Christian E. Weir
Eugene F. Lefevre
Mae T. Lefevre
Melvin B. Skehan
Marion F. Skehan
Patrick Ciampa
Eleanor Ciampa
Frederick C. Scheele
Gertrude E. Scheele
Joan Cobb
Lloyd Mullin
Helen Mullin

Wetland #12

Norfolk County Agricultural School
Philip Antognetti
Bracalanda Antognetti

Wetland #13

Town of Westwood
Patrick E. Kirby
Joseph F. Smith
Jeanette I. Smith
Harry S. Jenkins
M. Jean Jenkins
Frederic R. Shiere
Bessie K. Shiere
Edward P. Thurston
Shirley A. Thurston
Robert W. Harrington
Carolyn L. Harrington

Wetland #14

Joseph A.M. Beaulieu
Beverly M. Beaulieu
Allan C. Bain
Florence V. Bain

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Wetland #14 E C C I A L
SIDNEY R. HODGES O P Y

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Marie Hodges
George C. Taylor
Martha T. Taylor
Donald M. Ford
Doris M. Ford
Ivars Galins
Nora Galins
Robert E. Kelly
Mary T. Kelly
Edward F. Heneberry
Diane L. Heneberry
Albert S. Walker
Barbara S. Walker
Town of Westwood
Donald J. MacIntyre
Phyllis M. MacIntyre

Wetland #15
Town of Westwood
Roman Catholic Archbishop/(St. Margaret Mary Church of Westwood)
Greek Orthodox Community of South Shore Inc. Quincy
Hubert C. Eaton
Marie A. Eaton

Wetland #16
George A. Deviney
Florence M. Deviney
Town of Westwood
Gottfried J. Wilfinger
Marjorie Wilfinger
George F. Shamon
Virginia P. Shamon
Helen E. Sullivan

Wetland #17
Town of Westwood

Wetland #18
William G. Murray
Mary C. Murray
Rose Daley
Bernice Daley
Ava M. Costello
Helen C. Mitchell
William J. Mitchell
Neville D. Gilmore
Charlotte F. Gilmore
Joseph J. Agricola
Donna M. Agricola
Kathleen E. Hogan
Donald L. Fessenden
Margaret W. Fessenden

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Wetland #18 cont.
Gustaf A. Erlanson
Ann D. Erlanson
Robert M. Kean
Barbara J. Kean
Paul M. Colson
Vera J. Colson
Town of Westwood

Wetland #19
Dedham Water Company
Aubrey K. Colpitts
Edith G. Colpitts
Frederick H. Sawyer
Beatrice Sawyer
James J. Coleman, Jr.
Mary T. Coleman
Thomas B. Jansen
Elizabeth I. Jansen
Town of Westwood
Howard M. Linstead
Helen M. Linstead
Russell W. Symmes
Virginia G. Symmes
Anthony Hazen
Winfield H. Benner
Lois H. Benner
Charles J. O'Malia
Mildred L. O'Malia
John T. Thompson
Amy P. Thompson
Charles K. Pope
Irene H. Pope
Roderick C. McNeill
Jean R. McNeill
Nancy Marie Close
Frederick G. Close
Douglas N. Watson
Benjamin J. Murawski
Mary T. Murawski
Robert A. Talbot
Alice W. Talbot
Philip K. Brown, Jr.
Nancy A. Brown
Elizabeth B. Watson

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Wetland #19 cont.
Richard J. Fleming
Edna M. Fleming
Harvey Reed
Doris Reed
Alphonse A. Kantrimas
Helen F. Kantrimas
James F. Boylan
Marcella Ann Boylan, LCC #48200 /
Walter J. Hamton
Nancy K. Hamton
John Foley
Anna C. Foley
Ronald A. Follett
Anne F. Follett
Eugene F. Renzi
Mary F. Renzi
Robert F. Andrews
Triest R. Andrews
Gerald L. Dreher
Joanne A. Dreher
Martin J. Fitzgerald
M. Gloria Fitzgerald
Joseph Gianni
Viola F. Gianni

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Wetland #20
Town of Westwood
Harvey Bower III
April S. Bower
Dominic M. Palmer, Jr.
Jill M. Palmer
Allen Foehl III
Sara Hastings
John A. England
Edwina M. England
John Hinchman
Catherine S. Hinchman
Eugene J. Ratto
Patricia A. Ratto
Paul J. O'Sullivan
Mary J. O'Sullivan
Christian L. Peterson
Meridith R. Peterson
Alta G. McLaren
Selma Vinson
Gustava Vinson
Wesley E. Cooke
Dorothy M. Cooke
Samuel Wall
Suzanne R. Wall
Jon D. Sibley
Elaine A. Sibley
Edward M. Griffin
Jo-Anne C. Griffin
James R. MacKinnon
Pauline C. MacKinnon
Erwin Deutsch
Rosemary Deutsch

Wetland #21
Clifton Delmar Stevens
Barbara B. Malley
Edward W. Malley, Jr.
Laura Morse Robinson
Allan B. Rockwood
Town of Westwood
Benedict D. Costello
Evelyn E. Costello

Wetland #22
The Gillette Co. ICC #89246

Wetland #23
The Gillette Co. LCC #89246
Katherine D.W. Hodgdon
Estate of William H. McLaren

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Wetland #24
The Gillette Co. LCC #89246
Joseph Garside
Janet D. Garside

Wetland #25
The Gillette Co. LCC #89246
Joseph Garside
Janet D. Garside
John F. Henry
Shirley Henry
Henry B. McCracken, Jr.
Jane N. McCracken

Wetland #26
Francis L. Vincent
Frances V. Vincent
Ralph Lowell, Jr.
Joan M. Lowell
James H. Lowell II
Ralph Lowell
Charlotte L. Lowell
Roland D. Grimm
James F. Hunnewell ICC #37616
Eleanor McC. Hunnewell

Wetland #27
Lyle G. Hall
Lisbeth J. Hall
Camilla Lyman

Wetland #28
Saverio Nardelli
Estate of Margaret R. Lyman
Henry F. Davis III
Sheila Fiona Davis
Town of Westwood

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Wetland #29

Ralph J. Desisto
Lois G. Rosenberg
James H. Perkins
Lloyd F. Mussells
Emily Lyman Mussells
Polaroid Corporation
Judith Banker

Wetland #30

John F. Tobin
Emil E. Tobin
Karl Riemer
Louise Riemer
Housman Realty Trust, Elliot J. Englander, Trustee

Wetland #31

Karl Riemer
Louise Reimer
Housman Realty Trust, Elliot J. Englander, Trustee
Allied Investors Trust - Clifford G. Munzert, Trustee

Wetland #32

Hartwell G. Marvas
Lillian E. Marvas
Housman Realty Trust - Elliot J. Englander Trustee
Allied Investors Trust - Clifford G. Munzert, Trustee

Wetland #33

Roger H. Hallowell
Frances W. Hallowell
David L. Ferguson
Katherine C. Ferguson

Wetland #34

Anne Clark Hesseltine
Alfred H. Lawson
Lois G. Lawson
David L. Ferguson
Katherine C. Ferguson
Shelby P. Mudarri
Audrey F. Mudarri
Raymond J. MacPherson
June A. MacPherson

Wetland #35

Town of Westwood
Ralph Lowell
Charlotte L. Lowell
Roland D. Grimm
Edward H. Raymond

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Wetland #35 cont. LCC #63720
Isaiah Chase
Priscilla M. Chase
Elizabeth C. Worrall
John Worrall
John L. Merrill
Helen S. Merrill
James G. Wheeler
Emilen L. Wheeler
John O. Stubbs
Vera W. Stubbs
Theodore R. Hogg, Jr.
Mary T. Hogg
Catherine H. Iigenza
Joseph R. Iigenza LCC #76584
Caroline H. Davidson
Tomas F. Davidson
Estate of Margaret R. Lyman

Wetland #36
Roland D. Grimm

Wetland #37
Pacella's Concrete Pipe Corp.
The Gillette Co., ~~Inc.~~

Wetland #38
The Gillette Co., ~~Inc.~~
Roland D. Grimm

Wetland #40
Providence Produce Warehouse, Co.
Winnefred Mileham
Penn Central Co.

Wetland #41
Jeffrey Lee Gaudio
Gail Elaine Gaudio
Edward R. Hansen
Funice T. Hansen
Elmer J. Langley
Alptekin Ucmakli
Naciye G. Ucmakli
Robert H. Weiser
Charlotte F. Weiser
Lawrence E. Laben
Jure S. Laben
Mary L. Langley

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Wetland #41 cont.
Edward P. Marram
Beverly S. Marram
Anthony J. Testa
M. Joanne Testa
Stephen P. White
Patricia C. White
Felix Moschella
Josephine A. Moschella
Anthony N. Critsley
George S. Critsley
John C. Harrington
Lois E. Harrington

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Wetland #42

Moussa I. Sallale
Claudette D. Sallale
George Blumenthal
Carol Blumenthal
Stanley M. Lennick
Helen J. Lennick
Jack M. Stone
Charlotte Stone
David Kobey
Lynn Kobey
Dean Timothy Andrews
Maritsa Andrews
Victor A. McInnis
Constance M. McInnis
Vincent J. Kelley
Patricia T. Kelley
Paul S. Mormino
Janet C. Mormino
David P. Buchmueller
Florence J. Buchmueller
Gustav Scheer
Gertrude M. Scheer
Phil-Marg Realty Trust
Norfolk County Agricultural School
Tyrone R. Bourginon
Joseph J. Conaty, Jr.
Martha E. Conaty
Matilda Svendsen
James D. Supple
Elizabeth A. Supple
Thomas M. Darcy
Edward L. Morris
Esther F. Morris
John E. Barry, Jr.
Ann M. Barry
M. Lois Darcy

Wetland #43

Estate of Calvin B. Chamberlain
G.W. Realty Trust
Norman G. Richer
Florence S. Richer

Wetland #44

Joseph F. Hearne
Myra R. Hearne
Samuel L. Gwin
Susan N. Gwin
James E. Kearns
Frances J. Kearns

Wetland #45

Lourence G. Maloomian
Robert E. Youlden
Helen S. Youlden
Anthony J. Saia
Frances L. Saia
Andrew A. Katai
Joan E. Katai
Kathryn M. Shaffer

Wetland #46

Clement W. Wight LCC #87650 ✓
Christian E. Weir
Robert F. Sullivan LCC #87579 ✓
Linda F. Sullivan LCC #90947 ✓
Paul H. Abbott LCC #95657 ✓
Alice H. Abbott
James S. Speranza LCC #86050 ✓
Margaret M. Speranza LCC #88786 ✓
Town of Westwood
Andrejs Ruza
Olita Ruza
Judith B. True

Wetland #47

Phil-Marg Realty Trust
Schier D. Marks
Flaine B. Marks
Thomas R. Bolduc
Virginia Bolduc

Wetland #48

Walter P. LaCivita
Kenneth L. Isaacs
Francis C. Mason
Jacqueline R. Mason
Robert R. Forsberg
Jane R. Forsberg
Alfred T. Butterfield
Lois P. Butterfield

Recorded Apr. 24, 1974 at 3h. 10m. P. M.